THE CENTRE'S PROXY WAR



Governors in Opposition-ruled states are again in conflict with the elected governments there, forcing the judiciary to step in. A constitutional ambiguity has helped them sit endlessly on bills passed by the state legislatures

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Former governor of Gujarat and Jammu & Kashmir B.K. Nehru once described the constitutional position as one reserved for a "burnt-out superannuated member of the ruling party for whom a governorship was a kind of luxurious retirement". A former governor defined her role as a "super hostess", while another claimed to have read 200 novels during his tenure. Tamil Nadu governor Ravindra Narayana Ravi may not be guilty of many of these but the former Intelligence Bureau officer is accused of sitting on bills passed by the state assembly for months on end (some of them for years). On November 20, when the Supreme Court censured him, it ignited a heated debate on not just his actions but also the governor's role in India's federal structure.

This was the second time in 10 days that the top court had made strong observations on the actions of governors in Opposition-ruled states. Four of them—Tamil Nadu, Punjab, Kerala and Telangana—have now approached the SC alleging that withholding assent on bills is not just against the federal spirit of India but also affecting day-to-day governance. On November 20, the apex court began hearing two petitions filed by Tamil Nadu and Kerala.

The Dravida Munnetra Kazhagam (DMK) government in Tamil Nadu accuses Ravi of positioning himself as a "political rival" and creating a constitutional deadlock by sitting on bills for months. The Left Front government in Kerala says governor Arif Mohammed Khan is doing the same, trying to "defeat the rights of the people". The Aam Aadmi Party (AAP) government in Punjab and the Bharat Rashtra Samithi (BRS) regime in Telangana have made similar allegations against governors Tamilisai Soundararajan and Banwarilal Purohit, respectively.

While asking both the chief ministers and governors to do some "soul-searching", the apex court, on November 10, said that bills being kept in limbo could result in a potential breakdown of parliamentary democracy. Three days later, Ravi 'returned' 10 of the 12 bills—which had been sent to him between January 2020 and April 2023—to the assembly, prompting Chief Justice of India D.Y. Chandrachud to ask: "What was the governor doing for three years?"